

CHAPTER 30.

An Act to prevent difficulties arising in the event of the office of stipendiary magistrate for Chatham and Sheerness not being filled.

[10th May 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For the purpose of preventing any difficulty or failure of justice which might otherwise arise in the event of the office of stipendiary magistrate for Chatham and Sheerness becoming vacant, the provisions set out in the Schedule to this Act shall have effect as from the day on which the Secretary of State by order declares that the said office will become vacant.

Provisions
for pre-
venting
difficulties.

2.—(1) If it appears to the Secretary of State that the provisions contained in the Schedule to this Act are in any way insufficient or defective, he may by order amend the Schedule by making such further or better provision as appears to him necessary.

Amendment
of provi-
sions.

(2) An order made under this section—

- (a)** may be varied, amended or revoked by a subsequent order:
- (b)** shall be laid before Parliament as soon as may be after it is made:
- (c)** shall come into operation on the date specified therein in that behalf, but shall cease to have effect on the expiration of a period of three months from the date on which it came into operation, unless before the expiration of that period it has been approved by resolution passed by each House of Parliament:

Provided that, in reckoning any such period of three months as aforesaid, no

account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

Short title.

3. This Act may be cited as the Chatham and Sheerness Stipendiary Magistrate Act, 1929.

SCHEDULE.

1. A person for whose apprehension a warrant has been issued by the stipendiary magistrate for Chatham and Sheerness (in this Schedule referred to as "the stipendiary magistrate") may be brought before a court of summary jurisdiction either for the North Aylesford petty sessional division or the Sittingbourne petty sessional division.

2. Any further proceedings relating to, connected with or arising out of any conviction, order or determination of the stipendiary magistrate may be taken before, and any power to revoke, vary or revive any order or determination of the stipendiary magistrate may be exercised by, a court of summary jurisdiction for the petty sessional division within which the conviction was pronounced or the order or determination made.

3. All fines, penalties, costs and other sums payable in pursuance of a conviction or order of the stipendiary magistrate to the clerk to the stipendiary magistrate shall be paid to the clerk of the Sittingbourne petty sessional division or the clerk of the North Aylesford petty sessional division, according as the conviction was pronounced or the order made within the one division or the other, and all such fines, penalties, costs or sums shall be applied and accounted for in like manner as if the conviction or order were a conviction or order of a court of summary jurisdiction for the petty sessional division.

4.—(1) Any register or other document in the custody of the clerk to the stipendiary magistrate by virtue of his office shall be transferred to the custody of either the clerk of the Sittingbourne petty sessional division or the clerk of the North Aylesford petty sessional division according as the register or document relates to a proceeding which was had or to a matter which was done within the one division or the other, and shall be kept and dealt with by the clerk of the petty sessional division as if the proceeding or matter to which it relates were a proceeding or matter which was had or done before a court of summary jurisdiction for the division.

(2) Every register and document transferred under the foregoing provision shall be open to inspection by every person by whom it might have been inspected if it had remained in the custody of the clerk to the stipendiary magistrate.

(3) Copies and extracts of or from any such document or register as aforesaid made or certified by the clerk of the petty sessional division by whom it is to be kept under this provision shall be of the same effect as if they had been made or certified by the clerk to the stipendiary magistrate.

5. Where the stipendiary magistrate has ordered that the payment of any money ordered to be paid periodically shall be made through an officer of his court, the payment shall, instead of being so made, be made through the collecting officer of the court of summary jurisdiction for the petty sessional division in which the order was made unless that court otherwise directs.

6. Where the stipendiary magistrate has entered on the consideration of, but has not finally disposed of, any matter brought before him, the matter may be heard and determined by a court of summary jurisdiction for the petty sessional division within which the stipendiary magistrate was sitting when the matter came before him.

7. Where a person has been committed for trial by the stipendiary magistrate but not admitted to bail, any justice of the county of Kent shall have the same power of admitting him to bail as if he had been committed for trial by a justice for that county.

8. Any enactment enabling a deputy to act during any vacancy in the office of the stipendiary magistrate shall cease to have effect.

CHAPTER 31.

An Act to enable the Council of the Pharmaceutical Society of Great Britain to make byelaws providing for the registration, without examination, of persons registered as pharmaceutical chemists in Northern Ireland. [10th May 1929.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present